

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUPP031375: GREGORY JONES vs CITY OF THOUSAND OAKS

07/08/2026 in Department 42

Motion to Compel Further Responses to Request for Admissions, Set One

Motions:

- Plaintiff's Motion to Compel Further Responses to Plaintiff's Request for Admissions, Set One (*opposed*)
- Plaintiff's Motion to Compel Further Responses to Plaintiff's Form Interrogatories, Set One (*opposed*)
- Plaintiff's Motion to Compel Further Responses to Plaintiff's Form Interrogatories, Set Two (*opposed*)
- Plaintiff's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One (*opposed*)

Tentative Ruling:

To the extent not mooted by service of supplemental responses on June 22, 2026, the Court intends to grant Plaintiff's motions. Defendant City's objections are overruled. Defendant is ordered to:

- provide objection-free responses to Request for Admissions nos. 6, 7, 9-10, and 13-15,
- provide objection-free responses to Form Interrogatories, set one, no. 12.4, and
- provide objection-free responses to Request for Production nos. 25, 33, and 41.

Responses shall be provided within ten days.

The Court imposes sanctions as requested by Plaintiff as moving-party in the amounts requested (\$2,323 in total), payable within ten days.

Analysis:

The City served supplemental responses on June 22, 2026, after the motions were filed. Those supplemental responses rendered the motions to compel further responses to Form Interrogatories Nos. 4.1, 12.1, 12.5, and 17.1, and Requests for Admission Nos. 1-4, 8, 11, and 16-18, moot.

The Court acknowledges Plaintiff's contention that the supplemental responses remain deficient. However, the Court declines to address the adequacy of those responses at this time because the parties have not yet satisfied their obligation to meet and confer regarding the supplemental responses.

A. Request for Admissions That Remain at Issue

- 1. No. 6 asks the City to "Admit YOU installed the WATER VALVE on the PROPERTY before the INCIDENT."**

The City's objected on grounds of "vague, ambiguous and overbroad as to time" before responding that it made reasonably inquiry and has no ability to respond. The City argues that it lacks personal knowledge and has conducted a reasonable investigation without uncovering additional information.

The objections are not well taken on the grounds asserted and are therefore overruled. The lack of personal knowledge does not render the request vague or ambiguous, and limiting the request to the period "before the incident" does not make it overbroad. If the City has a basis to deny the request for admission, it should simply state its denial.

Because the City has already served a response, the Court orders the City to serve an amended response without objections.

2. No. 7 asks the City to "Admit YOU covered the WATER VALVE on the PROPERTY before the INCIDENT."

The City's objected on grounds of "vague, ambiguous and overbroad as to time" before responding that it made reasonably inquiry and has no ability to respond. The City argues that it lacks personal knowledge and has conducted a reasonable investigation without uncovering additional information.

The objections are not well taken on the grounds asserted and are therefore overruled. The lack of personal knowledge does not render the request vague or ambiguous, and limiting the request to the period "before the incident" does not make it overbroad. If the City has a basis to deny the request for admission, it should simply state its denial.

Because the City has already served a response, the Court orders the City to serve an amended response without objections.

3. No. 9 asks the City to "Admit the asphalt YOU used to cover the WATER VALVE between December 1, 2018 and April 30, 2019 had been removed and/or had worn off, as of the time of the INCIDENT."

The City's objected on grounds of "vague, ambiguous and overbroad as to time" before responding that it made reasonably inquiry and has no ability to respond. The City argues that it lacks personal knowledge and has conducted a reasonable investigation without uncovering additional information.

The objections are not well taken on the grounds asserted and are therefore overruled. The lack of personal knowledge does not render the request vague or ambiguous, and limiting the request to the period "before the incident" does not make it overbroad. If the City has a basis to deny the request for admission, it should simply state its denial.

Because the City has already served a response, the Court orders the City to serve an amended response without objections.

4. No. 10 asks the City to “Admit the WATER VALVE was in a dangerous condition at the time of the incident.”

The City responded with objections that the request is “vague and ambiguous and also calls for speculation and a legal conclusion.”

“Code of Civil Procedure section 2033.010 allows any party to a civil action to obtain discovery “by a written request that any other party to the action admit ... the truth of specified matters of fact, opinion relating to fact, *or application of law to fact.*” (Italics added.) Thus, “when a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial, thereby ‘setting at rest a triable issue.’ [Citation.] Otherwise he should set forth in detail the reasons why he cannot truthfully admit or deny the request. [Citation.]” *1489 (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 282, 78 Cal.Rptr. 481, 455 P.2d 409; see *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 429, 15 Cal.Rptr. 127, 364 P.2d 303.) *Joyce v. Ford Motor Co.* (2011) 198 Cal. App. 4th 1478, 1488–1489.

Here, the request does not call for speculation. Rather the request is asking for an application of law to fact, which is permitted. The City denies the RFA and argues in opposition to the Motion that it was not on notice.

The Court overrules the objections. Because the City has already served a response, the Court orders the City to serve an amended response without objections.

5. No. 13 asks the City to “Admit YOU had notice that the WATER VALVE was in a dangerous condition prior to the incident.”

The City responded with objections that the request is “vague and ambiguous and also calls for speculation and a legal conclusion.”

For the same reasons as noted for request No. 10, the Court overrules the objections. Because the City has already served a response, the Court orders the City to serve an amended response without objections.

6. No. 14 asks the City to “Admit YOU spray painted the asphalt surrounding the WATER VALVE with blue paint as depicted in Exhibit A attached hereto...”

The City objects that the request is vague, ambiguous or overbroad as to time.

The Court overrules the objections. Because the City has already served a response, the Court orders the City to serve an amended response without objections.

7. No. 15 asks the City to “Admit YOU spray painted the asphalt surrounding the WATER VALVE with blue paint as depicted in Exhibit A attached hereto, and incorporated herein, prior to INCIDENT in order to mark the WATER VALVE for repair.”

The City objects that the request is vague, ambiguous or overbroad as to time.

The Court overrules the objections. Because the City has already served a response, the Court orders the City to serve an amended response without objections.

B. Form Interrogatories That Remain at Issue

The only form interrogatory not mooted by the supplemental responses is 12.4, which asks:

“Do YOU OR ANYONE ACTING ON YOUR BEHALF know of any photographs, films, or videotapes depicting any place, object, or individual concerning the INCIDENT or plaintiffs injuries?”

The interrogatory then requires additional information listed in subds. (a) through (e) if the answer is in the affirmative.

Here, the City lists attorney-client and work-product privilege before responding. Because this is merely a request for the identity and location of certain information, there is no indication that the privileges apply.

While there is no indication that any information has in fact been withheld, the Court overrules the objection and orders an objection-free response.

C. Requests for Production That Remain at Issue

Pursuant to Code of Civil Procedure §2031.310(b), a motion to compel further responses to requests for production “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” Accordingly, on the present motion, Plaintiff bears the initial burden of demonstrating “good cause” for the subject requests for production. See *Greyhound Corp. v. Sup. Ct.* (1961) 56 Cal.2d 355, 388, and *Volkswagenwerk Aktiengesellschaft v. Sup. Ct.* (1981) 123 Cal.App.3d 840, 850. Defendant does not argue that good cause is not shown, and the Court finds the requested information clearly relevant and supported by good cause.

Here, the requests and responses are as follows:

No. 25: All DOCUMENTS concerning YOUR inspection of Thousand Oaks Boulevard between Conejo School Road and the Lakes Drive prior to the INCIDENT.

The City argues the request is vague, ambiguous, and overbroad.

No. 33: All DOCUMENTS which support YOUR contention that the WATER VALUE was not a cause of the INCIDENT.

The City argues the request is vague, ambiguous, and overbroad, seeks information protected by attorney client privilege and work product doctrine, and seeks premature disclosure of expert witness information.

No. 41: All DOCUMENTS which show YOU owned and/or controlled Thousand Oaks Boulevard between Conejo School Road and Lakes Drive as of the time of the INCIDENT.

The City argues the request is vague, ambiguous, and overbroad.

None of the City's objections have been supported. The requests are all clearly understandable, and there is no showing of overbreadth, privilege, or premature disclosure of information. While the City states that it will be providing further response to the requests before the hearing, there is no showing that they have done so yet.

The Court finds that unless the requests are mooted by further response before or at the hearing, the objections are overruled, and the City is ordered to file objection-free responses.

Sanctions

The request for sanctions made by Plaintiff as moving party are granted in the amounts sought. Defendant and its attorneys of record, jointly and severally, are ordered to pay Plaintiff a total of \$2,323.00. Sanctions are payable within ten days.